

Nepal Merchant Shipping (Flag) Act, 1970

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 3

Nepal's Commercial Water Vessel Flag Act, 2027

Royal Seal and Publication Date

2027.12.30.2

Amending Acts

1. Judicial Administration Reform Act, 2031 2031.4.18.6
2. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
3. Judicial Administration Act, 2048 2048.2.16

Certification and Publication Date

4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066* 2066.1.07
5. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 15 of 2027

An Act Made to Provide for the Flag of Commercial Water Vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Preamble: Whereas it is desirable to establish a flag for commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in order to provide a stronger foundation and facility for the international trade of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

His Majesty King Mahendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title, Extent, and Commencement: (1) This Act may be called the "NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Commercial Water Vessel Flag Act, 2027".

(2) This ActRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall extend to the whole of Nepal and shall also apply to any water vessel registered or required to be registered under the Water Vessel Registration Act, 2027, wherever it may be, and to the owners, crew, and employees of such water vessel.

(3) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

"Nepal Water Vessel Office" means the Nepal Water Vessel Office established under the Water Vessel Registration Act, 2027. 3. Establishment of Flag: (1) A flag for commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. is established.

(2) The flag under sub-section (1) shall be as specified in the Schedule. 4. Purpose and Privilege of Flag: The flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall be the symbol of the nationality of Nepali water vessels, and such flag shall

entitle a Nepali water vessel, while in a foreign port or foreign territorial sea, to the privileges and dues conferred by treaty, and while on the high seas, to the right of proper respect. 5.

Right and Duty to Use Flag: (1) Every Nepali water vessel registered with the Nepal Water Vessel Office shall have the right and duty to use the flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (2) Such flag shall be hoisted on the flagstaff at the stern of the vessel or on the aft mast. (3) No Nepali water vessel which is obliged to use the flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. under this Act shall use any flag other than the flag provided as a symbol of nationality. 6. **Duties of a Vessel Entitled to Use the Flag:** A Nepali water vessel entitled to use the flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall have the following duties:- (a) to use such flag with devotion and respect, (b) to use such flag as required by international law, and (c) to comply with international law while on the high seas, territorial sea, or in a port. 7. **Certificate of Right to Use Flag:** The certificate of registration of a water vessel or the provisional certificate of Nepali nationality issued by the Nepal Water Vessel Office to a Nepali water vessel shall be the certificate of the right of such water vessel to use the flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 8. **Persons Not Entitled to Use Flag:** (1) No water vessel which has not obtained a certificate of registration or a provisional certificate of Nepali nationality from the Nepal Water Vessel Office shall be entitled to use the flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. nor shall it be entitled to the protection of Nepali law. (2) A water vessel registered in a foreign state or a non-Nepali water vessel shall not be given the right to use the flag of commercial water vessels of NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 9. **Penalty:** (1) Any person or organization violating sub-section (2) or (3) of section 5 or section 6 shall be liable to a fine of up to Rs. 2,000.00. (2) Any person or organization violating section 8 shall be liable to a fine of up to Rs. 80,000.00 (eighty thousand rupees), or such water vessel may be confiscated, or the responsible person committing such offense may be liable to imprisonment for up to 5 years. 10.

Jurisdiction for Trial: (1) Amended by Some Nepal Acts Amendment Act, 2072. The authority for the initial hearing and adjudication of a case under sub-section (1) of section 9 shall be the Registrar of the Nepal Water Vessel Office, and the authority for the initial hearing and adjudication of a case under sub-section (2) of the same section shall be the District Court designated by the Government of Nepal. (2) While conducting the hearing and adjudication under sub-section (1), the Registrar shall exercise all powers vested in a District Court under the prevailing Nepali law and shall follow the procedure of such Court. (3) The Registrar may, if deemed necessary, conduct an inquiry himself or by deputing another officer, even outside NepalRemoved by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. (4) A party dissatisfied with the decision made by the Registrar under sub-section (1) may appeal to the District Court designated by Amended by Some Nepal Acts Amendment Act, 2072. the Government of Nepal within 35 days. 11. **Power to Make Rules:** The Government of Nepal may make rules for the purpose of implementing this Act, and such rules shall be deemed to have come into effect upon publication in the Nepal Gazette. **Schedule (Relating to sub-section (2) of section 3)** The flag of commercial water vessels of Nepal The word "Nepal" was added by the first amendment to the Nepal Water Vessel Registration Act, 2027. shall be as follows:- (a) A rectangular background of sea blue color, the length of which shall be one and a half times the breadth, and on the upper left corner thereof, the national flag shall be inscribed, and in the middle of the right half of the entire area, a red anchor shall be marked. (b) The national flag shall be inscribed on an area covering two-thirds of the breadth and one-third of the length of the entire area of the commercial water vessel flag. (c) The anchor

shall rest upon an imaginary straight line drawn from the base of the national flag. (d) The height of the anchor shall be equal to the distance between the points of the two triangles of the inscribed national flag, and its width shall be half of that distance.